

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a**

national report on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: [Rwanda](#)

Organization or entity responsible for the preparation of the report:
[MINISTRY OF EDUCATION/ Rwanda National Commission for UNESCO \(CNRU\)](#)

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

✓ [Yes](#)

No: Does your country plan to ratify this instrument?

Yes: Please indicate the stage of ratification process reached by your country:

Close to ratification

Underway

✓ [Actively under preparation](#)

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

✓ Yes

No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

✓ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- ✓ *Rwanda constitutional elaborated 2003 and amended 2015*
 - ✓ *Law Governing Education in Rwanda*
 - ✓ *To mention the Education For All in Rwanda by introducing the 9YBE and 12YBE in the Rwanda Education system since 2009 and 2012 respectively*

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

✓ Yes

No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

Rwanda has passed through the terrible history of discrimination education system (segregation) and education which provided based on the ethnic groups and region especially to access secondary and tertiary education which leads to 1994 Genocide against Tutsi, so through the Tradition court known as GACACA many administrative and other authorities have been accused and their respective punishment however Rwanda education system is basing tolerance and forgiveness through the national reconciliation program Rwandans are respecting the human right protocol.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes

✓ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

Rwanda is party of convention which is clear in the 2003 constitution which is highlighting the non-discrimination education with the implementation of the following policy: Universal compulsory education in 2003, Nine year basic education (9YBE) implemented since 2009, 12 Year Basic education (12YBE) adopted in 2012 policies, Girls Education Policy, Encouraging Girls students for Science Technology Engineering and Mathematic (STEM) and TVET programmes, Inclusive and special Education which take into consideration the infrastructure facilities and equipment for disabilities the construction of ICYUMBA CY'UMUKOBWA (Room for Girls) and provision of sanitary pads in all schools; Lifelong Education for All: Adult Education and Literacy, numeracy Education Policy, Higher Education (HEC) Policy for scholarship loans or grants which provide fund based on the merit and ICT Education Policy for access to digital learning and open education for All: One Laptop Per Child (OLPC), Smart classrooms,

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

This corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴

1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ✓ Constitutional laws and/or legislation prohibit discrimination in education
- ✓ Regulations prohibit discrimination in education
- ✓ Policies and programmes aim to eliminate and prevent discrimination in education
- ✓ Access to justice in case of violations of the right to non-discrimination in education
- ✓ Combatting discrimination in terms of curriculum

☐ Other:

Some institution bodies which are specifically responsible for combating discrimination like, Rwanda commission for Human Right, Ombudsman Office; Commission for Unity and Reconciliation; Commission Against Genocide; etc

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

- ✓ *Law Governing Education in Rwanda which is providing equal, opportunity to all Rwandese child*
- ✓ *Education policy: which is providing the equal guidance to access education to all without any distinction*
- ✓ *Law Governing Student Loans and Bursaries: All Rwandese has right to access that loan based on their performance*
- ✓ *Free and compulsory Education Policy: all Rwandese children has equal right to access education and these who are in special need have special consideration depending on their needs. etc*

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ✓ Constitutional laws and/or legislation guarantee equal access to education
- ✓ Regulations ensure equal access to all levels and types of education
- ✓ Policies and programmes ensure equal access to all levels and types of education

☐ Other:

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

- ✓ The policy of the GoR to ensure that children's rights are respected
- ✓ Special Needs (and Inclusive) Education Policy
- ✓ Adult Literacy Policy
- ✓ Girls Education Policy
- ✓ Nine Years Policy
- ✓ Higher Education Policy
- ✓ TVET Policy
- ✓ Early Childhood Development (ECD) Policy

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

The Government of Rwanda has provided free Education up to 12 years Basic education with free and compulsory 9 years of Basic education,

The Girls education and special need education which are cross-level of education

The government of Rwanda has set up the policy of support people in need through different program including education by providing school feeding , scholastic materials and special monitoring to make sure that these in need are coming to school and continue learning.

There is also TVET policy which specify that all Rwandese are accessing TVET based on their choice and Government provide all support through trainers training, infrastructure training materials like equipment consumables and other teaching material

To access Higher education in different field government of Rwanda provide support to all students equally based on their performance this regulated under Scholarship and loan policy

Foreigner students have right to access education in Rwanda at different levels of education,

Rwanda the special case of providing access education to refugees which is providing the same benefit in education as the national ones this includes (school feeding program, capitation grants, learning and teaching materials

School Construction Policy: construction of new schools to reduce distance from home to school which are taking into consideration inclusive and disability facilities.

- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|--|--|
| <ul style="list-style-type: none"> ✓ Providing financial incentives and fellowships ✓ Providing positive or affirmative action measures ✓ Ensuring inclusion in mainstream schools for all learners ✓ Training teachers on inclusive education ✓ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) ✓ Providing re-entry programmes for young mothers ✓ Eliminating all barriers for pregnant girls or young mothers in education | <ul style="list-style-type: none"> ☐ Providing auxiliary assistance <ul style="list-style-type: none"> ✓ Adapting education infrastructure ✓ Adapting curricula and methods ✓ Providing language classes to newcomers (e.g. refugees) ✓ Eliminating administrative barriers to education⁷ ✓ Providing flexible learning pathways ✓ Valuing diversity in schools ✓ ☐ Combatting stereotyping and stigmatisation |
|--|--|

☐ Other:

Government of Rwanda is proving special attention to special need by providing necessary facilities including learning facilities, appropriate infrastructure, and training of teacher on special need.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Policing community to fight against any early pregnancy, some affirmative action is taken to support girls and women through the education system

Government of Rwanda construct girls' room in each school with provision sanitary pads and other related facilities.

- Please indicate whether your country has adopted, and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

✓ Yes ☐ No ☐

Please provide reference to the relevant laws and provisions:

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

The law in Government of Rwanda for marriage is 21 year older however you can be allowed to get married at 18 when is proved the court when is necessary

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

✓ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Is from 3 years to 5 years

✓ Pre-primary education is free of charge for all: Please provide the duration:

In all government and government aided schools is free

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Law governing Education in Rwanda is including pre-primary as the key part and compulsory education.

Education policy which give orientation on how pre-primary is the foundation of good education success.

The many challenges are the availability of infrastructure and teachers which are near to the families compared to the age of kids,

The learning materials and kits or toys are not enough compared of the number of kids that need to join pre-primary

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

⁸ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

- Is primary education compulsory in your country?

✓ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

The duration period is 6 years, and the age of enrolment is from 6-year-old according to new law governing education in Rwanda

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

The many challenge is the over ages children in primary with overcrowding classroom. However the over crowding issues is ending in 2021 due to the government recent strategy which has heavily invest in primary school construction specially with more funds than ever from 2019.

- Is primary education available free of charge to all?

✓ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Education in Primary is free and compulsory non charge only the parents who are able can contribute on voluntarily basis

Parents are contributing to the education of their kids depending on their social wellbeing (incomes) especially in school feeding contribution provision, uniforms and transport.

No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

Yes

☐ No

- Please briefly provide information on the reforms taken:

We are under implementation of Competence based curriculum started in 2016

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

✓ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Education policy guiding education in Rwanda and gives the orientation on the accessibility of secondary education.

The new law governing education in Rwanda which provide clear guidance on how secondary education is administrated.

The free and compulsory education in Rwanda which provide guidance on how secondary education in Rwanda both lower and upper are free and compulsory

No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

✓ Yes

☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

The Secondary in education is free and compulsory from lower secondary which is 3 years and upper Secondary is free and compulsory before joining Vacation training to labour market.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐

✓ No ☐

- Please provide reference to the relevant laws and provisions:

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ✓ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ✓ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ✓ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

Law governing scholarship in Higher Education (including TVET at High level of Education)

Higher Education Policy

According the National Student admission Policy, no applicant will be refused admission unreasonably or on other than academic grounds or fitness for the programme.

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

Rwanda has no-discrimination in Higher education while to access tertiary education depend on the individual merit and choice and government provide the same facilities equally depending on the fields or programmes given high priorities: STEM, Education/Teaching,

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

☐ Higher education is generally free of charge

✓ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience

✓ Higher education is accessible through financial incentives and scholarships

☐ Higher education is accessible through positive or affirmative action measures

☐ Higher education is accessible through credit transfer system between states

☐ Other:

There is also private Higher education which is governed by higher education law and managed by private where these who want and has means are joining them.

The Rwanda's National Equality and Diversity Policy for Higher Education is in line with International Conventions (The UN Declaration of Human Rights, The UN Declaration on the Elimination of all Forms of Racial Discrimination, The UN Declaration on the Revised April 2007 2 Elimination of all Forms of Discrimination Against Women and The UN Declaration on the Right and Responsibility of Individuals, Groups and Organs of Society to Promote and Protect Internationally Recognised Human Rights and Fundamental Freedoms) and National Policies (The 2020 Vision, The Poverty Reduction Strategic Paper and the National Gender Policy).

Institutions will not discriminate on grounds of disability through less favourable treatment where this cannot be justified, or a failure to make reasonable adjustments, where this cannot be justified. The institute will take into account the need to provide physical access for people with disabilities when planning new buildings and carrying out the refurbishment of existing buildings.

The policies, practices and procedures of the institution, including this Policy, will be assessed for their impact on equality of opportunity for all groups including gender, disability, religion and age.

If the monitoring process identifies significant differences between equality groups in terms of student admissions, achievement levels, progress, or in staff recruitment and promotion, the institution will assess the reasons for this and will take positive action where appropriate to address under representation where appropriate.

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

The government of Rwanda has adopted the higher education funding model which is related

to the provision of education loan to all Rwandese who merit without any discrimination.

The Law governing student loan and bursaries is regulating the different fees for tuition, research, transport (for these studying abroad) and the living expenses given to all Rwandese who request it and fulfil the criteria set for that.

The financial cost which vary depending on the unit cost of the programme chosen and followed, is affordable since many Rwandese can join private H.E. Institutions and pay themselves all fees depending on the institution joined.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ✓ Provision of education for persons who have not received or completed the whole period of their primary education
- ✓ Provision of literacy programmes
- ✓ Provision of appropriate learning and life-skills programmes
- ✓ Provision of free of charge learning opportunities
- ✓ Provision of flexible learning pathways
- ✓ Provision of professional training and qualifications

☐ Other:

- Provision of real life experience and problems solving by the individual learner inspired by some good home-grown solutions found in Rwanda cultural and society.

- Please elaborate further on the measures taken:

Provision of flexible learning pathways this is underway in the new education qualification framework.

Provision of vocational and job training opportunities after the period of literacy education, as part of post-literacy activities which may include a wide variety of activities including, but not limited to, vocational training, crafts, reading and cultural activities.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ✓ Establishment of minimum norms and standards in education
- ✓ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ✓ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

The Government has recently established an institution in charge of assessment and accreditation which is independent, this institution is approved by law.

Also, that institution is respecting protocols and codes of conduct.

The country is also planning to join regional and international assessment to evaluate our learning and achievement of learner compared to the standards (in the manually we are using LARS Learning Achievement in Rwanda Schools to measure level of literacy and numeracy in schools)

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)

- ✓ Initial training and continuous professional development is provided
- ✓ Minimum standards and qualifications are required for the teaching profession
- ✓ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ✓ Performance monitoring systems

✓ Measures taken to increase women in leadership positions in education

☐ Other:

The nation monitoring of the teaching staff is done regularly and some incentive mechanism has provide to attract the best in teaching professional.

- Please briefly elaborate further on the measures taken:

The teacher training mechanism established in pre-service and in service,
Teacher status established and implemented

- Have there been instances of discrimination as regards the training for education personnel in your country?

Yes: Has your government addressed this issue?

☐ Yes

☐ No

✓ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

✓ Curriculum includes human rights education

✓ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

¹²

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

✓ Yes ☐ No ☐

- Please provide a brief description:

The education in Rwanda has the minimum standard that each school need to respect either government or private. The private school are respecting the norms and standards applied by the government, and also the private schools adhere to the national assessment which is a pre-condition for accreditation and after during the implementation. There is a good private government partnership in education system in Rwanda.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

✓ Yes ☐ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

The law in Rwanda are applied equally to all who are on the Rwandan territory without any special consideration.

The policy and law are equally applicable to all individuals, stakeholders and partners who in the Rwandan Education system including the private schools which have to comply with the national regulations and pedagogical standards.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

✓ Yes ☐ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ✓ Constitutional laws and/or legislation protect the right to education of national minorities
- ✓ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ✓ Curriculum is adapted to national minority needs
- ✓ Teachers are trained to adapt to national minority needs

Other:

National services (Itorero) which is in charge of training youth on the good values based on

the Rwandan cultural values, such as integrity, resilience, respect and love of the country, ...

National commission for reconciliation which is in charge of making sure that every citizen is considered as Rwandese without any other consideration of believe, trust, religion or region of origin. They all have the same right and respect to each other and this is implemented through different program like – NDI UMUNYARWANDA.

- Please provide a brief description of the provisions:

As Rwanda is a democratic State, all Rwandans are benefiting at same level the good and service provided by government, especially in education. However, the attention is made to these who are in need or who need special attention is done without any discrimination as stipulated by the constitution and the law governing Education in Rwanda.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

In Rwanda we are using one mother language Kinyarwanda and the language of instruction is English but we are also using other languages as subject like French, Kiswahili.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

Rwanda ratified the international convention on refugees to provide same facilities and benefit in education equally to Rwandese and to other foreign learners or refugees who are attending the same schools as Rwandese, except for specific time to learn their respective culture (extra-curriculum activities).

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

In 2016 with New York declaration Rwanda committed to provide all necessary facilities to refugees as provided to nationals and in Feb 2018 Rwanda signed the declaration with the immediate effect to provide the same right to refugees as Rwandese.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ✓ Inclusion in mainstream education
- ✓ Provision of language courses
- ✓ Specific training for educational staff
- ✓ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ✓ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ✓ Non-formal and/or alternative education programmes
- ✓ Financial support
- ☐ Other innovative measures:

Their learning in the same condition, same classes with their colleagues Rwandese with same benefit from Government side.

Please briefly elaborate further on the measures taken:

Rwanda putted the mechanism to make sure that in partnership with development partners refugees are integrated and have the same benefit as national citizens as recommended by NHCR, however Rwanda has its special attention of carrying to these who are in need first as stipulated by Government to make sure whoever on our land has his right properly.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ✓ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Limited resources compared to the needs especially for the remote and rural areas.

- ✓ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

Non in case of Rwanda the available resource are managed properly and the stakeholders are fully involved in all decisions and policies and strategies formulation according SWAP

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

The methods need to be more comprehensive on each specific obstacle not combining challenges together. Also we need to see the challenges by level of education in some context because the challenges need to be answered according to their magnitude; like the case of Rwanda we are elaborating each challenge by level and try to find the resolution together through the competitive way using like Sector working groups and Technical working group to make sure that the decision taken are approved during Joint Sector Reviews which is more effective in our context.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ✓ Translation of the Convention/Recommendation into the national and possibly local languages
- ✓ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ✓ Increased public awareness through advocacy material on the Convention/ Recommendation or the core principles of the right to education
- ✓ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other:

As stated above Rwanda is using SWAP approach to make sure that all stakeholders in education are contributing to the highest level from planning through the implementation, monitoring and reporting. Specially the National Commission which is working closely and day today with the Ministry of Education on all matters related to education, has significantly contributing in advocacy and awareness campaigns, with excellent participation in mobilising schools managers, parents and local administrations and communities on the non-discrimination and equality education.